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Adapting from the international experience?

In mature countries, one element of the privacy problem is well established: the need to restrict government access to information about individuals, i.e., to tie down surveillance by the government into rule-of-law procedures and limit the extent of surveillance. This has evolved in the UK and in Europe over centuries. The conflict between state access to personal information, and human freedom, is particularly seen in the authoritarian governments of the twentieth century. This is the prime problem in the field of privacy, and is a largely settled matter in mature democracies.

In recent years, there is fresh concern about the abuse of information about individuals by firms such as Facebook. European policymakers have pushed to the frontiers of the field with the ‘General Data Protection Regulation’ (GDPR) in the EU.

A simple reading of the contemporary literature on privacy in mature democracies is, then, quite misleading. Such a reader would see the bulk of the contemporary policy discourse as being the debates around GDPR and its enforcement. A reader of this literature would think that Facebook is a major problem in the field of privacy. Policy recommendations in India may flow from this study of the international experience that we have to block information access about Indians by Facebook using a legal instrument on the lines of GDPR. This position would be treated warmly by persons in India who are hostile to foreign companies.

Such transplantation of the international experience would, however, be incorrect for two reasons. First, access to personal information by the state